ATTILA POULTRY FARM

Premium Quality Chicken

4th Floor, T-Plaza, Thika Town
investment@attilachicken.com
+254 700 354354
www.attilachicken.com

REF:ATP 006

ATTILA POULTRY FARM
INVESTMENT PARTNERSHIP AGREEMENT

P.O BOX 865 00521 NAIROBI
Phone: +254 700-354354
www.attilachicken.com

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THIS CONTRACT is made this Day of **7th Oct** 2025

BETWEEN

ATTILA POULTRY FARM P.O Box 865 00521 being a company duly registered under the Companies Act No. 15 of 2017, Laws of Kenya (hereinafter referred to as "**Attila**")

AND

Investor: SAMUEL KARUHI NJAKAI
ID NUMBER:21939764
P.0 Box 2634 – 00100 Nairobi,* ID NUMBER:*25188110
EMAIL ADDRESS: *snjakai@yahoo.com* TELEPHONE NUMBER:*0722-634392*

Collectively referred to as "**The Parties**".

WHEREAS

A. Attila operates chicken farming business which offers Managerial expertise, provide chicken house structures and selling chickens when they get ready.

B. The investor is willing to provide, day old chicks and feeds or funds as working capital for the business (investment) depending on his or her capital investment, and insurance policy.

C. It is agreed that Attila shall pay back the investor's investment into the poultry project after resale, at a profit of Kshs. 30, per invested chick, payable in 6 payments cycles as specified in the payments schedule section until termination of the Contract.

NOW THIS AGREEMENT WITNESSETH AND IT IS HEREBY AGREED as follows:

1. **The Selected Investment package is as summarized below:**

BRONZE PACKAGE
5000 (one day old chicks)
COST

CHICKS	ITEM	COST	TOTAL
	5000*	105 =	525,000Ksh
FEEDS	350 bags		1,432,500Ksh
TOTAL INVESTMENT			1,957,500Ksh
INSURANCE PCY			79,144Ksh
TOTAL PACKAGE COST			**= 2,036,644Ksh**

The investor's contribution will be utilized as working capital to acquire chicks and feeds. In return, the investor will earn interest on the capital.

Attila Poultry Farm guarantees a return on investment of 900,000 payable in 6 guaranteed payments cycles of Ksh150,000Ksh each as specified in the payments schedule below:

Placement Date	Payment Date	Investment rate	Amount (Kes.)	Type of Transfer	Payment Status
22nd October 2025	5th December 2025	Kes. 30/ Bird	150,000	Bank Transfer COOPERATIVE BANK OF KENYA 01100069433200	Scheduled
21st December 2025	4th February 2026	Kes. 30/ Bird	150,000		
19th February 2026	5th April 2026	Kes. 30/ Bird	150,000		
4th June 2026	19th June 2026	Kes. 30/ Bird	150,000		
3rd August 2026	18th August 2026	Kes. 30/ Bird	150,000		
18th August 2026	2nd October 2026	Kes. 30/ Bird	150,000		

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The investor will channel the package cost to Attila Poultry Farm through these bank details:
Bank Name: ***EQUITY BANK LTD*** Bank
Address: ***NAIROBI, KENYA*** Account
Name: ***ATTILA POULTRY FARM*** Account
number: ***1470281986033***
Swift code: ***EQBLKENAXXX***
Branch name**: *THIKA SUPREME***

Attila Poultry Farm will channel the payments to the investor through following bank details:
Bank Name**: COOPERATIVE BANK OF KENYA**
Bank Address: ***NAIROBI, KENYA***
Account Name: **SAMUEL K NJAKAI**
Account Number:**01100069433200**
Swift Code: ***KCOOKENA***
Branch Name: **BURU BURU**

2. Purpose of Partnership

a) To allow multiple people to share the responsibility of a business, including profits, ownership, and potential losses.

b) Increase knowledge and resources

c) Partners can share their expertise, knowledge, and resources to create better products and reach a larger audience.

d) Enhance credibility and image

e) Open up new opportunities

f) Working with people who have different skills and knowledge can lead to new ideas and opportunities.

g) Bridge gaps

h) A good partnership can help two parties address gaps in their solo operations.

ROLES AND RESPONSIBILITES OF THE PARTIES

1.1. **Attila Poultry Farm**

1.1.1. Attila shall carry out its obligations under this contract with utmost good faith.

1.1.2. Attila undertakes to run a successful poultry project that guarantees a return on investment for the parties.

1.1.3. Attila shall ensure that it follows the payments terms laid out in the payment schedule mentioned in section 1.

1.1.4. Attila shall carry out i t s obligations under this contract with reasonable skill, care, and diligence.

1.1.5. Attila shall ensure that it carries out thorough due diligence on the investor and put in place adequate Know Your Customer mechanisms in the same regard.

1.1.6. Attila shall ensure that it puts in place proper anti-money laundering mechanisms.

1.2. **The INVESTOR**

2.1. The Investor shall carry out its obligations under this contract with utmost good faith.

2.2. The Investor undertakes to comply with Attila ant-money laundering policy.

2. TERMS OF PAYMENT

2.1. Attila Poultry Farm guarantees the repayment of the Investor's base capital together with the last payout. The Investor will receive a profit payment of Kenya Shillings Thirty (Kshs. 30.00) per chick for the initial 5,000 birds. The profit payout will occur every 45 days after placement, in accordance with the agreed-upon schedule.

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2.2. For re-invest the base Attila, will do the re-placement of chickens within two weeks after selling the chickens with 60 days.

3. DURATION OF CONTRACT

3.1. This Agreement shall come into force on the Commencement Date and shall continue for a period of twelve (12) months subject to the fulfillment of the payment terms as spelt out in clause 3 herein.

3.2. Without prejudice to the foregoing, it is agreed between the parties that earlier termination shall be subject to the provisions of this agreement.

4. ANTI-MONEY LAUNDERING

4.1. Attila undertakes that its services or those offered by it do not facilitate money-laundering and cannot be used by any person to commit or facilitate the crime of money laundering and financing of terrorist activities

4.2. Parties undertake that they shall familiarize themselves with applicable Anti-bribery and anti- corruption Laws, and shall at all times in connection with and throughout the course of this agreement, comply with said laws and their regulations (if any).

4.3. The Parties shall maintain throughout the term of this Agreement a programme designed to ensure compliance with Applicable Law, including the implementation of an education and training programme and other measures reasonably calculated to prevent and detect violations of Applicable Law

4.4. Each party agrees to maintain adequate internal controls and to keep accurate and complete records that support the payments due and all transactions under this Agreement.

4.5. The investor shall promptly notify Attila of any allegation of fraud, bribery or corrupt or unlawful practices made against Attila's employees or agent so as to enable Attila to conduct investigation in respect of any such allegations at any time during term of the agreement.

4.6. In the event that the investor has a reasonable suspicion that a breach of Applicable Law may take or has taken place, cooperate in good faith with Attila and its representatives in determining whether such a violation has occurred.

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5. CONFIDENTIALITY

5.1. From time to time during the Term Confidential Information may be given by one Party to this Agreement (the "Disclosing Party") to the other Party (the "Receiving Party"). The Receiving Party will treat and keep all Confidential Information as secret and confidential and will not, without the Disclosing Party's written consent, directly or indirectly communicate or disclose (whether in writing or orally or in any other manner) Confidential Information to any other person other than in accordance with the terms of this Agreement.

5.2. The Receiving Party will only use the Confidential Information for the sole purpose of complying with its obligations under this Agreement.

5.3. Notwithstanding clause 6.2 the Receiving Party may disclose Confidential Information to those of its agent who strictly need to know the Confidential information for the sole purpose set out in clause 6.2 provided that the Receiving Party shall ensure that such Agents are made aware prior to the disclosure of any part of the Confidential Information that the same is confidential and that they owe a duty of confidence to the Disclosing Party on the same terms as contained in this Agreement. The Receiving Party shall at all times remain liable for any actions of such Agents that would constitute a breach of this Agreement; or the extent required by law or the rules of any applicable regulatory authority.

5.4. In the event that a Party is legally compelled to disclose the Confidential Information as per clause 6.3 such party shall be entitled to do so provided it gives the non-disclosing Party prompt written notice and assists the other Party in pursuing a protective order

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6. INTELLECTUAL PROPERTY

6.1. Nothing in this Agreement affects the Parties' proprietary rights/ Intellectual Property in particular but not limited to domains, trademarks, patents, source codes and software, in existence prior to the date hereof.

6.2. The Investor agrees not to do anything whatsoever which might impair Capitals right, title, or interest in or to the Intellectual Property in Attila poultry business, its brand, name, and assets and agrees that it shall not acquire or attempt to acquire any right, title or interest, license in or to, any of Attila Intellectual Property, except as expressly set out in this Agreement and its appendices that form part of this agreement.

7. LIABILITY AND INDEMNITY

7.1. Each Party shall be liable to the other Party for damages it causes by any breach of provisions of this Agreement. Liability as between the Parties is limited to actual damage suffered (both direct and indirect damages).

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8. GOVERNANCE

8.1. Each Party represents to the other Party that:

8.1.1. it has power to enter into this Agreement and to perform its obligations hereunder and has taken all necessary and legal action required to authorize the execution, delivery and performance of this Agreement.

8.1.2. it has followed all procedures which a Party is required to follow under all applicable laws prior to entering into this Agreement.

8.1.3. all consents, approvals, registrations or authorizations required under all applicable laws for a Party to lawfully enter into this Agreement and perform its rights and obligations hereunder have been obtained or made and are in full force and effect and that each Party will maintain such approvals, registrations and authorizations during the Term

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9. DISPUTE RESOLUTION

9.1. If any dispute arises between the parties relating to the application, interpretation, implementation or validity of this agreement, the parties agree to use their best efforts to first settle all such disputes by amicable negotiations;

9.2. Should such negotiations fail to achieve a resolution within Fifteen (15) days, either Party may declare a dispute by written notification to the other, whereupon such dispute shall be referred to arbitration under the following terms: -

9.2.1. Such arbitration shall be resolved in accordance with the provisions of the Kenyan Arbitration Act 1995 (as amended from time to time);

9.2.2. The place and seat of arbitration shall be Nairobi and the language of arbitration shall be English;

9.2.3. The award of the arbitration tribunal shall be final and binding upon the Parties to the extent permitted by law and either Party may apply to a court of competent jurisdiction for enforcement of such award; and

9.3. Notwithstanding the above provisions of this clause, a Party is entitled to seek preliminary injunctive relief or interim or conservatory measures from any court of competent jurisdiction pending the final decision or award of the Arbitrator.

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10. ENTIRETY

10.1. This Agreement constitutes the entire Agreement between the Parties with respect to the subject matter of the Agreement. Amendments and additions to this Agreement shall be invalid unless in writing.

11. SEVERABILITY

11.1. Should any provision of this Agreement be or become invalid, inoperative, or unenforceable, in its entirety or in part, the validity of the remaining provisions shall remain unaffected. The invalid, inoperative or

11.2. unenforceable provision shall be deemed replaced by a provision which is legally permissible and corresponds most closely, in respect of place, time, amount, and scope, to what the Parties would have agreed had they known the invalidity, inoperability or unenforceability of the provision in question in order to reach the same economic objective. The Parties shall without undue delay confirm vis-à-vis each other the content of the provision which replaces the invalid, inoperative or unenforceable provision The same shall apply in the event of any missing provisions.

12. NON-CIRCUMVENTION

12.1. The provisions of this agreement shall not be circumvented by either Party

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13. VARIATION

13.1. The terms of this Agreement, including the payments hereunder may be modified, limited, extended, or terminated by agreement of the parties. No variation of this Agreement shall be effective unless it is agreed in a formal amendment signed by both parties.

14. NO IMPLIED WAIVERS

14.1. Failure by Attila at any time to require performance of any provision of this Agreement shall in no way affect the right to require full performance any time thereafter, nor shall the waiver by Attila of a breach of any provision of this Agreement constitute a waiver of any succeeding breach of same or any other provision, nor constitute a waiver of the provision itself.

15. FORCE MAJEURE

15.1. Neither party shall be liable for any failure to perform or any delay in performing its obligations under this Agreement where the cause of such failure or delay is beyond that party's reasonable control.

15.2. The party claiming inability to perform its obligations for this reason shall immediately give written notice to the other.

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16. SEVERABILITY

16.1. Should any provision of this Agreement be or become invalid, inoperative, or unenforceable, in its entirety or in part, the validity of the remaining provisions shall remain unaffected. The invalid, inoperative or unenforceable provision shall be deemed replaced by a provision which is legally permissible and corresponds most closely, in respect of place, time, amount, and scope, to what the Parties would have agreed had they known the invalidity, inoperability or unenforceability of the provision in question in order to reach the same economic objective. The Parties shall without undue delay confirm vis-à-vis each other the content of the provision which replaces the invalid, inoperative or unenforceable provision. The same shall apply in the event of any missing provisions.

17. TERMINATION OF CONTRACT

Termination for Breach by either Party

17.1. A Party ("Non-Defaulting Party") shall have the right, without prejudice to its other rights or remedies, to terminate this Agreement immediately by written notice to the other Party ("Defaulting Party"), and such notice shall be effective immediately upon service to the Defaulting Party if:

17.1.1 The other party is in breach of any of its material obligations under this Agreement and either that breach is incapable of remedy or that other party has failed to remedy that breach within thirty days after receiving written notice requiring it to remedy that breach.

17.1.2 Has intentionally disclosed such party's confidential information, without prior consent of the other party; or

17.1.3 The other Party is unable to pay its debts or becomes bankrupt or insolvent or an order or an application is made or a resolution passed for the administration, winding-up or dissolution of the other party (otherwise than for the purposes of a solvent amalgamation or reconstruction) or an administrative or other receiver, manager, liquidator, administrator, trustee or similar officer is appointed over all or any of the assets of the other party or the other party enters into or proposes any composition or arrangement with its creditors generally or anything analogous to the foregoing occurs.

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Termination for Convenience

17.2 A Party may terminate the Agreement without cause by serving sixty (60) days' written notice of termination on the other Party.

Termination due to contract Expiry and Closure

17.3 Upon termination of the Agreement by the Investor, Attila shall repay to the investor the total investment amount 1,957,500 less insurance fees. The said repayment of the principal investment shall be made within the notice period of thirty days following termination by the investor. Such repayment shall be effected in full, directly to the investor's designated bank account, and shall be free of any deduction.

Consequences of Termination of the Agreement

17.4 Termination of this Agreement shall not relieve either party from any obligations accrued through the date of termination. In addition, the terms and conditions set forth in this Agreement, which by their nature would continue beyond termination of this Agreement, including the provision with respect to Confidentiality, shall survive the termination of this Agreement.

17.5 Notwithstanding its termination, the provisions of this Agreement shall survive to the extent necessary to permit an orderly settlement of accounts between the Parties and to bring ongoing activities to a proper close with the least disruption to the pending work.

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18 INSURANCE

18.1 The investor agrees and undertakes to take up a Poultry insurance policy, on every invested chick, within seven (7) days from the date of execution of this agreement.

19 ASSIGNMENT

19.1 The INVESTOR shall not assign any of its obligations under this Agreement.

20 NOTICES AND COMMUNICATIONS.

20.1 Unless otherwise expressly stated in this agreement, any notice or other communication bill or statement provided for by this agreement shall;

20.1.1 Be in writing;

20.1.2 Be in legible writing and in English;

20.1.3 Be signed by or on behalf of the sender (if an individual) or an officer of the sender;

20.1.4 Be addressed to the party to whom is to be given (addressee) at the address as notified by the addressee for the purpose of this clause.

20.2 A notice shall be deemed to have been received by the Parties:

20.2.1 On the date of delivery, if delivered by hand or electronic mail;

20.2.2 Five (5) days after the date of mailing, in the case of registered mail with sufficient postage prepaid; and

20.2.3 On the date of delivery by courier to the proper address, in the case of prepaid receipted courier service.

21 INTENTION TO BE BOUND

21.1 Each of the Parties hereby agrees and confirms for the purposes of the Law of Contract Act (Chapter 23, Laws of Kenya) that it has executed this Agreement with the intention of binding itself fully to the contents hereof.

21.2 No person who is not a party to this Agreement or the annexures thereto shall be made a party to nor shall have any right to rely on or enforce any term of this Agreement.

22 GOVERNING LAW AND JURISDICTION

22.1 Unless otherwise specified in this Agreement and the annexures thereto, this Agreement and performance hereunder shall in all respects be governed by and construed in accordance with the law of the Republic of Kenya.

22.2 Subject to the provision of clause 10, any and all proceedings relating to the subject matter hereof shall be maintained in the courts Of Kenya, which Courts shall have exclusive Jurisdiction

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23 GENERAL

23.1 The Parties shall act as independent entities in all matters pertaining to this Agreement and the services to be rendered jointly and the employees or agents of one shall not be deemed to be the employees or agents of the other for any purpose. No Party shall have the authority to bind the other Party in any respect without a specific power of attorney in writing from the other Party

23.2 This Agreement embodies the entire contract between the Parties regarding its subject matter. No variation of the terms and conditions of this Agreement shall have effect unless it is agreed in writing and signed by the Parties authorized representatives.

Investor to attach documents:

a) ID Copy
b) KRA Pin
c) Passport photo
d) Names and Contact details for the Next of Kin

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IN WITNESS WHEREOF this Agreement has been duly executed by the parties hereto as of the day and year first above written.

SIGNED BY: ATTILA POULTRY FARM)
)
Anne Kanyori)
Name of Director)
)

Company Seal

Sign)
)
ID No.

In the presence of;

Advocate

SIGNED BY: INVESTOR)
SAMUEL KARUHI NJAKAI)

)
Sign.....)
)
ID No.21939764)

Company Seal

In the presence of;

Advocate

WITNESSED BY

Name……)
)
Sign……..)
)
ID No.)